



Pensions (Increase) Act 1965

1965 CHAPTER 78

An Act to make provision with respect to increases or supplements in respect of certain pensions.

[22nd December 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, the annual rate of a pension specified in Schedule 1 to this Act which began not later than 1st April 1964, may, in respect of any period beginning on or after the appointed day, be increased by the pension authority by an amount equal to the following percentage of the adjusted rate of that pension, that is to say—

Increase of
certain
pensions.

- (a) if the pension began not later than 1st April 1957, sixteen per cent. ;
- (b) if the pension began after 1st April 1957 but not later than 1st April 1958, fourteen per cent. ;
- (c) if the pension began after 1st April 1958 but not later than 1st April 1959, twelve per cent. ;
- (d) if the pension began after 1st April 1959 but not later than 1st April 1960, ten per cent. ;
- (e) if the pension began after 1st April 1960 but not later than 1st April 1961, eight per cent. ;
- (f) if the pension began after 1st April 1961 but not later than 1st April 1962, six per cent. ;
- (g) if the pension began after 1st April 1962 but not later than 1st April 1963, four per cent. ;
- (h) if the pension began after 1st April 1963, two per cent.

(2) Subsections (2) to (6) of section 1 of the Act of 1959 (which describe the conditions for the increase of a pension under that section) shall apply to the increase authorised by this section as they apply to the increase authorised by subsection (1) of that section.

(3) In subsection (1) of this section, the expression "adjusted rate", in relation to any pension, means the aggregate annual rate of that pension after any relevant increase thereof apart from that subsection, any fraction of a pound in that aggregate being treated as a whole pound.

Further
increase of
certain
pensions.

1965 c. 74.

2.—(1) In relation to any period beginning on or after the appointed day—

(a) for the purposes of this Act, section 1 of the Act of 1956, the Act of 1959 and the Act of 1962, a pension computed under section 13(2)(b) of the Superannuation Act 1965 (which provides for pensions of re-employed civil servants to be computed on emoluments before re-employment where those emoluments are higher than subsequent emoluments) shall be deemed to begin on the day following the last day of the service by reference to the emoluments of which the pension falls to be computed and not on the day following the last day of the service in respect of which the pension is payable; and

(b) the provisions of subsections (2) and (3) of this section shall have effect where a person has, after being in receipt of a pension specified in Schedule 1 to this Act or after having terminated his service in circumstances such that he is or may become eligible for such a pension at a later date, rendered further service by virtue of which the basic rate of that pension has fallen (or if that service had been terminated by retirement would have fallen) to be reassessed.

(2) Where any such pension as is referred to in subsection (1)(b) of this section is a pension specified in paragraph 1, 4 or 5 of Part I of the said Schedule 1 and the reassessment falls to be made by reference to—

(a) the aggregate of the further service and the previous service of the person in question; and

(b) emoluments attributed to a period immediately preceding the termination of the further service not lower than the emoluments by reference to which the basic rate of the pension was assessed before, or, as the case may be, would have been assessed but for, the rendering of the further service,

then if in the case of the reassessed pension or any other pension derived therefrom the aggregate of the basic rate of the reassessed or, as the case may be, derived pension and any relevant increases thereof falls short of what the aggregate of the basic rate of the pension falling to be reassessed (or, as the case may be, of the like other pension derived therefrom) and any relevant increases thereof would have been if—

- (i) the service rendered before the date of the retirement or termination of service which gave rise to the receipt of, or eligibility for, the pension falling to be reassessed had been increased by the amount of the further service; and

(ii) no further service had been rendered after that date, the reassessed or, as the case may be, derived pension may be further increased by the pension authority by the amount of the difference.

(3) Where, in the case of any such pension as is referred to in the said subsection (1)(b) which has been reassessed or any other pension derived therefrom, subsection (2) of this section does not apply but the aggregate of the basic rate of the reassessed or, as the case may be, derived pension and any relevant increases thereof falls short of what that aggregate would have been if the further service had not been rendered, the reassessed or, as the case may be, derived pension may be further increased by the pension authority by the amount of the difference.

(4) In the foregoing provisions of this section—

- (a) the expression “basic rate”, in relation to any pension, means the annual rate of that pension apart from any relevant increase thereof or any increase thereof under this section;
- (b) the expression “reassessment”, in relation to a pension which was not assessed before the rendering of the further service but which in consequence of the rendering of that service has or would have fallen to be assessed on a different basis, includes the assessment on that basis, and the expression “reassessed” shall be construed accordingly;
- (c) any reference to another pension derived from a reassessed pension shall be construed as a reference to another pension the basic rate of which falls to be computed by reference to (or to what, if the further service had been terminated by retirement, would have been) the basic rate of the reassessed pension, not being such another pension granted in consideration of the surrender of part of the reassessed pension.

(5) In consequence of the foregoing provisions of this section, the following enactments are hereby repealed in relation to any period beginning on or after the appointed day, namely—

(a) section 2 of the Act of 1959; and

(b) in sections 1(1)(a) and 9(1)(b) of the Act of 1956 and in section 5(1)(a) of the Act of 1959, the words “(not being a pension computed under paragraph (b) of subsection (2) of section thirty-six of the Superannuation Act 1949)”.

1949 c. 44.

Power to provide increased benefits for persons subject to approved superannuation schemes.

3.—(1) This section applies to persons who are or have been subject to a superannuation scheme operated under the Federated Superannuation System for Universities, the Federated Superannuation Scheme for Nurses and Hospital Officers, or any other scheme approved by the Treasury for the purposes of this section; and in this section—

(a) the expression “appropriate authority” means the Treasury, a Secretary of State, the Minister of Housing and Local Government or the Minister of Health;

(b) the expression “benefits” means benefits enjoyable after the termination of the service in respect of which they are granted;

(c) the expression “the authorised increases” means the benefits conferred by—

(i) sections 1 and 2 of the Act of 1944;

(ii) section 1 of the Act of 1952;

(iii) section 1 of the Act of 1956;

(iv) section 1 of the Act of 1959;

(v) sections 1 and 2 of the Act of 1962; and

(vi) section 1 of this Act,

on persons whose superannuation benefits are regulated under the Superannuation Act 1965.

1965 c. 74.

(2) An appropriate authority or, where that authority is not the Treasury, that authority with the consent of the Treasury may make regulations—

(a) for conferring on persons to whom this section applies who—

(i) are or have been employed in the civil service of the State; or

(ii) are or have been employed in the College of Domestic Arts of South Wales and Monmouthshire,

such benefits as appear to the authority by whom the regulations are made to be appropriate having regard to the authorised increases;

(b) for—

(i) conferring on persons to whom this section applies who are or have been such officers as are mentioned in paragraph (a) or such practitioners as are mentioned in paragraph (c) of either section 67(1) of the National Health Service Act 1946 or 1946 c. 81. section 66(1) of the National Health Service (Scotland) Act 1947; or

(ii) empowering a local authority to provide for persons to whom this section applies who are or have been employed by them or by some other authority to whom that local authority are, or are deemed in accordance with the regulations to be, the successor,

such benefits as appear to the authority by whom the regulations are made to be appropriate having regard to the authorised increases other than those under sections 1 and 2 of the Act of 1944;

(c) for conferring on persons to whom this section applies who are or have been employed in the civil service of the State but who were recruited and are or were so employed in a territory outside the United Kingdom such benefits as appear to the authority by whom the regulations are made to be appropriate having regard not only to the authorised increases but also to the circumstances of that territory.

(3) The Minister of Overseas Development may, with the approval of the Treasury, make regulations for conferring on persons who are or have been special contributors to the Oversea Superannuation Scheme such benefits as appear to that Minister to be appropriate having regard to the authorised increases.

(4) Regulations under this section may make different provision for different classes of persons and may provide for any benefit to take effect from such date, whether before or after the making of the regulations, as may be specified therein.

(5) The power to make regulations conferred by this section shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(6) This section shall come into force on the appointed day, and as from that day the following enactments are hereby repealed, namely—

(a) the Superannuation Act 1946, except for sections 6 and 1946 c. 60. 10(2);

(b) section 3(1)(a) of the Act of 1952;

(c) section 8(1)(b) of the Act of 1956;

(d) section 3(3)(a) of the Act of 1959 ; and

1965 c. 74.
1946 c. 60.

(e) Schedule 9 to the Superannuation Act 1965 so far as it amends the Superannuation Act 1946 ;

but any regulation made or approval given under any of those enactments, being a regulation or approval in force immediately before the appointed day, shall continue to have effect as if made or given under this section.

Amendments
as to previous
increases.

4.—(1) Subject to subsection (2) of this section, and without prejudice to section 3(2) and (3) of the Act of 1947 (which terminate or restrict the payment under the Act of 1944 of an increase of a pension the amount of which is determined by reference to a rate of emoluments received on or after 1st April 1947 or by reference to an average rate of emoluments received over a period of service falling wholly or partly after 1st April 1946), a pension the amount of which is determined in any other manner shall not be increased under the Act of 1944 if it first became payable on or after the appointed day in respect of service ending after 31st March 1947.

(2) Subsection (1) of this section shall not apply to—

1947 c. 41.

(a) any pension payable under a pension scheme mentioned in section 39(5) of the Fire Services Act 1947 (which relates to schemes applicable to firemen ceasing to serve before the commencement of that Act) to the widow or a child of the person in respect of whom the pension is payable ; or

(b) any pension payable under a scheme brought into operation by an order under section 26 of that Act to the widow or a child of the person in respect of whom the pension is payable where, in relation to that pension, the scheme is subject to the modifications set out in section 27(3) of that Act,

1965 c. 11.

and nothing in the said subsection (1) shall affect the powers exercisable by reference to the Act of 1944 under section 3 of this Act or section 17 of the Ministerial Salaries and Members' Pensions Act 1965.

(3) An Order in Council under section 4 of the Act of 1944 extending the provisions of section 1 of that Act to additional pensions shall be made in like manner as an Order in Council for comparable purposes under section 3(1) of the Act of 1959 ; and accordingly for subsection (4) of the said section 4 (which requires an Order under that section to be laid before Parliament in draft and an Address to be presented to Her Majesty praying that the Order be made) there shall be substituted the following :—

“ (4) No recommendation to make an Order under this section shall be made to Her Majesty in Council unless a

draft of the Order has been laid before, and approved by a resolution of, each House of Parliament."

(4) As from the appointed day, section 1 of the Act of 1962 shall apply to—

(a) a pension payable under the Lord Chancellor's Pension 1832 c. 111. Act 1832; and

(b) a pension payable under Mr. Speaker Morrison's Retirement Act 1959, 1959 c. 1.
(8 & 9 Eliz. 2).

in addition to the pensions referred to in subsection (2) of that section.

(5) In the Act of 1962, as from the appointed day—

(a) in section 3(4)—

(i) paragraph (a) (which, in the case of certain pensions payable in any overseas territory, restricts the payment of a supplement under the said section 3 to cases where the pensioner is resident in the United Kingdom) is hereby repealed; and

(ii) in paragraph (b) (which, in the case of certain pensioners resident in any overseas territory, restricts the payment of such a supplement to cases where the pensioner is so resident solely for the purposes of a contract of service with the Government of that territory), at the end there shall be added the words "or with some other body approved for the purposes of this paragraph by the Minister of Overseas Development";

(b) in paragraph 2 of Schedule 1 (which provides for the increase of a pension payable under any relevant pension enactment as defined in the Judicial Pensions Act 1959) the words "to a person who retired before 9th July 1959" are hereby repealed. 1959 c. 9.
(8 & 9 Eliz. 2).

(6) In Schedule 3 to the Act of 1962 (which describes the pensions eligible for supplements under section 3 of that Act) there shall as from the appointed day be added at the end the following paragraph:—

"6. A pension in respect of service in any auxiliary or special police force raised in an overseas territory, not being a pension payable to or in respect of such a person as is mentioned in paragraph 7 of Part I of Schedule 1 to the Pensions (Increase) Act 1965 or payable under any warrant or other instrument made by virtue of Her Majesty's prerogative in respect of such forces".

(7) For the removal of doubt, paragraph 1 of the Schedule to the Pensions (Increase) Acts (Extension) (No. 1) Order 1963 S.I. 1963/2105. and paragraph 1 of the Schedule to the Pensions (Increase) Acts

S.I. 1963/2106. (Extension) (No. 2) Order 1963 (which relate to pensions payable by a local authority under any enactment in respect of service any part of which is not local government service) shall each have effect, and be deemed always to have had effect, as if at the end there were added the words "and not being a pension payable in respect of service ending otherwise than with local government service".

Supplementary provisions. 5.—(1) In calculating the amount of a pension for the purposes of a relevant increase thereof under any other Act, any increase of that pension under section 1 or 2 of this Act, otherwise than under subsections (1)(a) and (5) of the said section 2, shall be disregarded; and, in ascertaining the rate of any pension granted to any person by reference to the rate of some other person's pension, no account shall be taken of any increase of that other person's pension under or by virtue of section 1 or 2 of this Act.

(2) The provisions of—

(a) sections 3 to 6 of the Act of 1959 (except subsection (3) of section 5, which corresponds with subsection (1) of this section, and except subsection (1) of section 6, which corresponds with section 6 of this Act); and

(b) section 3 of the Act of 1962,

shall apply for the purposes of this Act subject to the modifications set out in Schedule 2 to this Act.

Expenses. 6. There shall be defrayed out of moneys provided by Parliament—

(a) any expenditure incurred by a government department under or by virtue of this Act;

(b) any increase attributable to any provision of this Act in the sums payable out of moneys so provided under any other enactment.

Interpretation. 7.—(1) In this Act, unless the context otherwise requires, the following expressions have the following meanings respectively, that is to say—

"the Act of" any specified year means the Pensions (Increase) Act of that year;

"the appointed day" means the earliest day after the passing of this Act (not being earlier than 1st January 1966) which is the first day of a calendar month;

"enactment" includes any enactment in a local Act and any provisional order confirmed by Parliament;

"local authority" has the meaning assigned by section 40 of the Local Government Superannuation Act 1937 or, in Scotland, by section 34 of the Local Government Superannuation (Scotland) Act 1937;

“pension” has the same meaning as in the Act of 1959 as extended by section 6 of the Act of 1962;

“pension authority” means, in relation to a pension specified in paragraph 12 of Part II of Schedule 1 to this Act, the Treasury and, in relation to any other pension, the authority by whom the pension is payable;

“relevant increase” means an increase by virtue of, or by reference to increases under, any of the following enactments, that is to say, the Acts of 1920 and 1924, the Acts of 1944 and 1947, the Act of 1952, the Act of 1954, section 1 of the Act of 1956, section 1 of the Act of 1959, sections 1 and 2 of the Act of 1962, and section 1 of this Act.

(2) Unless the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended, extended or applied by or under any other enactment, including any enactment contained in this Act.

8.—(1) This Act may be cited as the Pensions (Increase) Act 1965. Citation
and extent.

(2) The Pensions (Increase) Acts 1920 to 1962, sections 48(1) to (4) and 62(3) of the Superannuation Act 1949, section 3 of, 1949 c. 44. and Schedule 2 to, the Pensions (India, Pakistan and Burma) 1955 c. 22. Act 1955, section 17 of the Ministerial Salaries and Members' 1965 c. 11. Pensions Act 1965 and this Act may be cited together as the Pensions (Increase) Acts 1920 to 1965; and subsection (4) of the said section 17 is hereby repealed.

(3) This Act—

(a) extends to Northern Ireland for the purpose of the increase of pensions payable under Schedule 8 to the Government of Ireland Act 1920, or payable to or 1920 c. 67. in respect of an existing Irish officer within the meaning of that Act under the Superannuation Acts 1834 to 1965, or payable under or by virtue of any other Act extending to Northern Ireland out of the Consolidated Fund of the United Kingdom or out of moneys provided by the Parliament of the United Kingdom;

(b) extends to Northern Ireland, the Isle of Man and the Channel Islands for the purpose of the increase of pensions payable by the trustees of a trustee savings bank or by the Inspection Committee of trustee savings banks,

but, save as aforesaid, extends to Great Britain only.

SCHEDULES

Section 1.

SCHEDULE 1

PENSIONS WHICH MAY BE INCREASED UNDER SECTION 1

PART I

Pensions payable by government departments

- 1965 c. 74. 1. A pension payable under the Superannuation Act 1965.
- 1920 c. 67. 2. A pension payable under Schedule 8 to the Government of Ireland Act 1920 or payable to or in respect of an existing Irish officer within the meaning of that Act under the Superannuation Acts 1834 to 1965.
3. A pension payable under the Elementary School Teachers (Superannuation) Acts 1898 to 1912.
4. A pension not specified in paragraph 2 of Part II of this Schedule which is payable under the Teachers (Superannuation) Acts 1918 to 1956, excluding so much, if any, thereof as would not have been payable apart from an election under section 10(1) of the Teachers (Superannuation) Act 1956.
- 1956 c. 53. 5. A pension payable under the Education (Scotland) Acts 1939 to 1965, other than an additional pension granted under Regulation 45 of the Teachers (Superannuation) (Scotland) Regulations 1957.
- S.I. 1957/356. 6. A pension payable under the enactments relating to the pensions of the Royal Irish Constabulary, other than a pension payable under regulations made under section 1 of the Royal Irish Constabulary (Widows' Pensions) Act 1954.
- 1954 c. 17. 7. A pension payable by a Secretary of State—
- 1945 c. 17.
(9 & 10 Geo. 6).
1948 c. 24. (a) under the Police (Overseas Service) Act 1945 or the Police Pensions Act 1948 to a person who at the time of his retirement was engaged as mentioned in section 1(1) of the said Act of 1945; or
- (b) under the said Act of 1948 to a person who at the time of his retirement was engaged in service in respect of which the provisions of section 5 of the Overseas Service Act 1958 had effect,
- 1958 c. 14. or granted in consideration of the surrender of part of such a pension.
- 1947 c. 41. 8. A pension payable by a Secretary of State in accordance with any scheme in force under section 26 of the Fire Services Act 1947.
- 1932 c. 25.
1945 c. 13.
(9 & 10 Geo. 6).
1946 c. 64. 9. A pension payable under section 29 of the Finance Act 1932, section 60 of the Finance (No. 2) Act 1945, or section 62 of the Finance Act 1946.
- 1946 c. 81. 10. A pension payable by the Minister of Health under section 6 of the National Health Service Act 1946, or in pursuance of regulations made under section 67 or 68 of that Act, or by way of such compensation as is mentioned in section 7(1)(b) of the Pensions (Increase) Act 1959 in pursuance of an order made under section 11(9) of the said Act of 1946.
- 1959 c. 50.

11. A pension payable by the Secretary of State under section 6 of the National Health Service (Scotland) Act 1947 or in pursuance of regulations made under section 66 or 67 of that Act. SCH. 1
1947 c. 27.
12. A pension not specified in paragraph 1 of this Part of this Schedule which is payable by the Minister of Pensions and National Insurance in pursuance of regulations made under section 67 of the National Insurance Act 1946 or of rules made under section 3 of the Superannuation (Miscellaneous Provisions) Act 1948. 1946 c. 67.
1948 c. 33.
13. A pension payable under rule 7 or 10 of the National Insurance and Civil Service (Superannuation) Rules 1948. S.I. 1948/2434.
14. A pension payable under the Governors' Pensions Act 1957. 1957 c. 62.
15. A pension payable under Part I of the Administration of Justice (Pensions) Act 1950 out of the Consolidated Fund of the United Kingdom or out of moneys provided by Parliament. 1950 c. 11.
(14 & 15 Geo. 6).
16. A pension payable under section 9 of the County Courts Act 1934. 1934 c. 53.
17. A pension payable under section 20 of the Sheriff Courts (Scotland) Act 1907. 1907 c. 51.
18. A pension payable under section 1 of the Sheriffs' Pensions (Scotland) Act 1961. 1961 c. 42.
19. A pension payable under the Police Magistrates (Superannuation) Acts 1915 and 1929. 1915 c. 42.
1929 c. 1.
20. A pension payable under the Judges Pensions (India and Burma) Act 1948. 1948 c. 4. (12,
13 & 14 Geo. 6).
21. A pension payable under the Diplomatic Salaries, &c. Act 1869. 1869 c. 43.
22. A pension payable by the Postmaster General in accordance with a scheme made under the Injuries in War (Compensation) Act 1915. 1915 c. 24.
23. A pension payable under section 34(1) of the Courts-Martial (Appeals) Act 1951. 1951 c. 46.
24. A pension payable under any relevant pension enactment as defined in the Judicial Pensions Act 1959. 1959 c. 9.
25. A pension payable under section 3 of the Ministerial Salaries Consolidation Act 1965. (8 & 9 Eliz. 2).
1965 c. 58.
26. A pension payable under the Lord Chancellor's Pension Act 1832. 1832 c. 111.
27. A pension payable under Mr. Speaker Morrison's Retirement Act 1959. 1959 c. 1.
(8 & 9 Eliz. 2).
28. A pension payable by way of residual compensation under Part IV of the Gas (Staff Compensation) Regulations 1949 as amended by the Gas (Staff Compensation) (Amendment) Regulations 1951. S.I. 1949/2289.
S.I. 1951/1327.
29. A pension payable under section 79 of the National Insurance Act 1965, including a pension so payable by virtue of section 52(5) of the National Insurance (Industrial Injuries) Act 1965. 1965 c. 51.
1965 c. 52.
30. A pension payable under the Superannuation (President of the Industrial Court) Act 1954. 1954 c. 37.
31. A pension payable under section 2(6) of the Lands Tribunal Act 1949 to a former member of the Lands Tribunal mentioned in section 1(1)(b) of that Act. 1949 c. 42.

SCH. 1

PART II

Pensions payable by local authorities, etc.

1. A pension not specified in paragraph 4 of this Part of this Schedule which is payable by any local authority solely in respect of local government service, that is to say, service under any local authority, any service which, by virtue of section 2 or 3 of the Local Government (Emergency Provisions) Act 1916, section 12(3) of the Local Government Superannuation Act 1937, section 12(3) of the Local Government Superannuation (Scotland) Act 1937, or the Local Government Staffs (War Service) Act 1939, is, for superannuation purposes, treated as service under a local authority, and any service which, by virtue of section 1(1) or (2) of the Local Government Superannuation Act 1939, is to be treated as service for the purposes of either of the said Acts of 1937, any such service as aforesaid being included notwithstanding that the local authority concerned have ceased to exist.
 - 1916 c. 12.
 - 1937 c. 68.
 - 1937 c. 69.
 - 1939 c. 94.
 - 1939 c. 18.
2. A pension payable by any local authority under section 14(3)(b) of the Teachers (Superannuation) Act 1925.
 - 1925 c. 59.
3. A pension payable under the Police Pensions Act 1948, under section 11 of the Police (Scotland) Act 1956, under section 34 of the Police Act 1964 or under any enactment repealed by the said Act of 1948 or by the Police Pensions Act 1921, not being a pension specified in paragraph 7 of Part I of this Schedule or a pension (other than a pension granted in consideration of the surrender of part of another pension) payable to the widow or a child of the person in respect of whom it is granted.
 - 1948 c. 24.
 - 1956 c. 26.
 - 1964 c. 48.
 - 1921 c. 31.
4. A pension payable by any local authority in respect of service as a member of a fire brigade in accordance with any scheme in force under section 26 of the Fire Services Act 1947, or otherwise payable by a local authority in respect of service as a professional fireman as defined by the Fire Brigade Pensions Act 1925, or in respect of any service which, by or under any enactment, is treated as approved service in a fire brigade.
 - 1947 c. 41.
 - 1925 c. 47.
5. A pension payable under the Police Pensions Act 1921 to the widow or a child of a person to whom the National Fire Service (Preservation of Pensions) (Police Firemen) Regulations 1941 applied at the time of that person's death or retirement.
 - S.R. & O.
1941/1271.
6. Any pension payable by a local authority by way of such compensation as is mentioned in section 7(1)(b) of the Pensions (Increase) Act 1959.
 - 1959 c. 50.
7. Any pension specified in any Order in Council in force at the passing of this Act under section 4 of the Pensions (Increase) Act 1944.
 - 1944 c. 21.
8. A pension payable under section 6 of the Coroners (Amendment) Act 1926.
 - 1926 c. 59.
9. A pension payable under section 33 of the Justices of the Peace Act 1949.
 - 1949 c. 101.
10. A pension payable under section 22 of the Administration of Justice (Pensions) Act 1950.
 - 1950 c. 11.
 - (14 & 15 Geo. 6).

11. A pension payable by the trustees of a trustee savings bank or by the Inspection Committee of trustee savings banks. SCH. 1

12. A pension payable under section 5(8) of the Cotton (Centralised Buying) Act 1947 or in pursuance of directions given under section 4(2) of the Cotton Act 1954. 1947 c. 26.
1954 c. 24.

SCHEDULE 2

Section 5(2).

MODIFICATIONS OF ENACTMENTS IN APPLICATION TO THIS ACT

PART I

MODIFICATIONS OF SECTIONS 3 TO 6 OF ACT OF 1959

1. Any reference to the Act of 1959 (except in a reference to a specified provision or to the passing of that Act) shall be construed as a reference to this Act.

2. Any reference to section 1 of the Act of 1959 (including the reference to subsection (1) thereof in section 3(2)) shall be construed as a reference to section 1 of this Act, and any reference to section 2 of that Act shall be construed as a reference to the provisions of section 2, other than subsections (1)(a) and (5) thereof, of this Act.

3. Any reference to the Schedule to the Act of 1959 (including a reference to a specified Part or paragraph thereof) shall be construed as a reference to Schedule 1 to this Act (or, as the case may be, that Part or paragraph of that Schedule) except that the reference in section 5(2) to a pension specified in Part II of the Schedule to that Act shall be construed as a reference only to a pension specified in paragraphs 1 to 10 of Part II of the said Schedule 1 other than a pension so specified only by virtue of section 6 of the Act of 1962.

4. In relation to any increase to be authorised or granted in connection with an increase authorised by section 1 of this Act, the references in section 3(4) and section 4 to the appointed day shall be construed as references to the appointed day for the purposes of this Act, and the references in section 4 to the passing of the Act of 1959 shall be construed as references to the passing of this Act.

5. Section 4(1)(a) shall apply with the substitution for the words "or by Order in Council under the Special Constables Act 1914" of the words "or section 34 of the Police Act 1964". 1914 c. 61.
1964 c. 48.

6. In relation to any period beginning on or after the appointed day for the purposes of this Act, the reference in section 4(2) to any relevant increase of a pension shall include a reference to any increase authorised by section 1 of this Act or by section 1 or 2 of the Act of 1962.

7. The reference in subsection (3) of section 6 to that section shall be construed as a reference to section 6 of this Act.

PART II

MODIFICATIONS OF SECTION 3 OF ACT OF 1962

1. The references in section 3(3) and (5) to the Act of 1962 shall include references to this Act.